

**Send Invoice To:**

SUB BERRY GLOBAL INC
2320 BOWLING GREEN RD
FRANKLIN KY 42134
Phone #: (270) 586-2443
Fax #: (270) 586-2434
FRANAccountsPayable@berryglobal.com

PURCHASE ORDER

Page 1 of 2

PO Number	5053621	- 000 OP
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VENDOR CODE	BRANCH / PLANT
124826	FRAN
COMPANY	00068

VENDOR:

LOPAREX LLC
4194 PAYSPIRE CIRCLE
CHICAGO IL 60674

SHIP TO:

BPC00000414
BERRY SPECIALTY TAPES, LLC
SUB BERRY GLOBAL INC.
1852 OLD COUNTRY RD
RIVERHEAD NY 11901

PO DATE	CARRIER	FREIGHT	PAYMENT TERMS			TAX
9/18/25		.	3% 10, NET 30			
BUYER		ORDER PLACED BY	ORDER TAKEN BY	REQ. DATE	PROMISED DELIVERY	
PENDLETON, JENNIFER		JJPENDLE	TJR	11/12/25	11/12/25	
QUANTITY	ITEM NUMBER	DESCRIPTION	ORIG ORDER	REQ DATE	UNIT COST	EXTENDED COST

* Please confirm P.O. via email to: *
* jenniferpendleton@berryglobal.com *

Berry Global Vendor, please provide the following information for set up in Berry Global TMC portal when Berry is paying the freight for shipments over 150 lbs.

1. Company Name
2. Full Address of where the shipment is picking up from.
3. Contact Phone/Email of the person that will be entering our shipments in the
4. Hours of operation
5. Any special instructions/requirements/Hazmat etc....
6. Once these criteria are filled in please email berryplasticstmc@mytmc.com for your username/password set up.

If you already have a Navisphere online username and password please go to www.mytmc.com and enter your information to build this shipment online. Please address any questions you have in regards to tracking or tracing to the Berry Global receiving plant via firstnamelastname@berryglobal.com.

All purchases are conditioned upon Vendor's agreement to be bound solely by Berry Global's standard purchase terms and conditions available online at <https://www.berryglobal.com/en/legal/supplier-resources>. A Certificate of Analysis for each item listed on this purchase order must be sent to the ship to location listed herein at the time of shipment.

Continued

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PENDLETON, JENNIFER		JJPENDLE	TJR	11/12/25	11/12/25	
QUANTITY	ITEM NUMBER	DESCRIPTION	ORIG ORDER	REQ DATE	UNIT COST	EXTENDED COST

*** PLEASE INCLUDE A COA OR COC WITH EVERY SHIPMENT ***
PER TJR

32142	LY	1929445	REL,SCK_BL_127G_C2S_L_1422	11/12/25	.8913	LY	28,648.16
		Line: 1000	2100398, 52564, 6040/7000P				

3% 10, NET 30

Tax Rt

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TOTAL TAX:		
ORDER TOTAL:	USD	28,648.16
AUTHORIZED SIGNATURE		

[illegible]

3. **Supply Chain Security:** To ensure the security of Goods, Supplier must be a member of the U.S. Customs-Trade Partnership Against Terrorism (C-TPAT), Canadian Partners in Protection (PIP) program, or an equivalent supply chain security program, as applicable. Or, upon request, Supplier must submit to audit and provide a signed agreement to strengthen supply chain security. In addition, Supplier must use international transportation providers certified under the Supply Chain Security Program.

[illegible]

6. **Warranty.** Supplier represents and warrants that: (i) it possesses the requisite skill, capacity to supply, and facilities necessary to fulfill its obligations under the Agreement, and that it possesses and is in compliance with all required licenses, intellectual property rights, permits and approvals necessary to fulfill its obligations under the Agreement; (ii) it complies in all respects with Berry's Supplier Code of Conduct available online as indicated within Clause 1 above, as the same may be revised by Berry from time to time, and it requires all of its suppliers of materials used in the Goods to certify to Supplier in writing such supplier's compliance with Berry's Supplier Code of Conduct; (iii) the Goods will, in all respects, conform to all applicable Laws and professional requirements in force in the countries of manufacture, supply and/or receipt of the Goods and any countries of which it has been notified that Berry will use the Goods or sell products incorporating the Goods, and Supplier shall provide Berry with all information necessary for Berry to use, sell or the Goods in compliance with such requirements, and are not articles that cannot, by Law, be distributed throughout multiple states, provinces, countries or jurisdictions; (iv) the Goods will be free of chemicals and substances prohibited, restricted or limited by any applicable Laws; (v) the Goods will conform in all respects to the Specifications which Berry may change from time to time by notice to Supplier; (vi) the Goods are safe and appropriate, and fit for Berry's intended use, and will be properly labelled to disclose all materials used therein and as otherwise required by applicable Laws, and will include all necessary instructions or recommendations relating to the handling, assembly, use and storage of the Goods; (vii) the Goods will be merchantable, of good quality and workmanship, and free from defects, and the Goods will not be manufactured in whole or in part by any subcontractor unless approved in a signed writing in advance by Berry; and (viii) the Goods will not infringe the patent, trademark, copyright, trade dress or other intellectual property rights of any person. The parties agree that the longest permissible statute of limitation, consistent with applicable Law, shall only be to control any dispute or claim hereunder, notwithstanding any effort by Supplier to reduce such limitation period.

7. **Conformances:** Supplier warrants that it will provide all appropriate certifications that the Goods comply with the Specifications to Berry's satisfaction including, as applicable, FDA conditions of use requirements, guarantees that the Goods are not adulterated or misbranded, and material safety data sheets. Supplier certifies that neither it nor its principals (owners, senior officials) nor any subcontractor used in relation to the Goods supplied to Berry of any change in this status within three (3) business days of such occurrence.

8. **Global Trade Compliance and Export Controls Regulations:** Supplier accepts all responsibility for the information provided on any document certifying the Good's country of origin or qualification for trade preference upon import and agrees to provide supporting documents for such claims including appropriate letters, affidavits, production and financial records as deemed necessary. Anticipated and actual changes to the country of origin or claimed eligibility under a trade preference must be immediately communicated to Berry's Procurement and Global Trade Compliance departments. Any losses, claims, or liabilities resulting from import claims made with inaccurate or incomplete data related to origin and/or trade preference are the responsibility of Supplier and Supplier agrees to defend, indemnify, and hold Berry harmless for any claim, loss, investigation, or damage resulting therefrom. Berry shall have the right to conduct audits of Supplier's facilities, books, and records to confirm compliance with Berry requirements and policies. Deliverables under the P.O. may be subject to U.S. A.I.C. and other government export control regulations. Supplier represents and warrants that it will comply with all applicable export laws and regulations related to the use, export, and re-export of the Goods. Consistent with the requirements of Berry's Supplier Code of Conduct, referenced herein, Supplier will comply with applicable anti-boycott and export controls laws, supply chain security and trade regulations requirements. Supplier confirms that all personnel, contractors, and other third parties involved in the sale of the Goods are properly screened against lists maintained by relevant national authorities, including U.S. Denied Parties lists. Supplier shall maintain evidence of reviews and screening and make such evidence available upon request. Supplier will advise Berry of any export controls violations related to any purchase hereunder.

the extent that the Goods include or embody any of Berry's intellectual property, including inventions, patents, trademarks, service marks, trade dress, copyrighted material or any other material, information or data which, in the form and manner presented, are proprietary to Berry, all such information and intellectual property shall be deemed "Confidential Information" and, as applicable, trade secret information, and Supplier shall have only a limited, temporary, revocable, non-exclusive license (not including any have-made license) to use the Confidential Information only for the time period and to the extent necessary to complete the Agreement. Supplier must: (i) employ safeguards at least as stringent as its own for protection of its own confidential information and no less than a reasonable degree of care to protect such Confidential Information; (ii) not permit the use or disclosure of any Confidential Information to any person other than those employees of Supplier who have a need to know to fulfill the P.O. and who are bound to at least the same obligations of confidentiality as set forth herein; (iii) not reproduce, copy, reverse engineer or misuse or misappropriate any Confidential Information; and (iv) promptly report to Berry in writing any disclosure or attempted use of the Confidential Information in violation of this clause. When no longer required to fulfill the P.O., Supplier will return such Confidential Information or destroy it and provide acceptable proof thereof as Berry directs. Supplier acknowledges that any breach of the provisions of this Clause 9 would cause irreparable harm and therefore Berry, in addition to all other relief available pursuant to applicable Law or in equity or under the Agreement, shall be entitled to equitable relief, where permitted by law, including injunctions and any other or additional remedies, fees, even if the Confidential Information under consideration does not constitute a trade secret.

10. **Privacy & Security:** Supplier will fully comply with all applicable privacy and security laws. To the extent applicable, Supplier warrants, represents and undertakes Personal Data on Berry's behalf: that: (i) it will notify Berry immediately, and in any event within 24 hours of becoming aware, of any actual or suspected Personal Data Breach; (ii) it will take appropriate measures to prevent, detect and respond to any actual or suspected Personal Data Breach; (iii) it will take appropriate measures against the unauthorized, unlawful or accidental processing, access, loss or destruction of such Personal Data; and (iv) it will, without Berry's permission, transmit Personal Data outside of the country wherein the Berry entity with whom Supplier is contracting is located. For purposes of this Clause 10, Personal Data means and include all applicable laws protecting the personal data and privacy of natural persons, including in particular, the European General Data Protection Regulation 2016/679 ("GDPR") and its implementing national data protection laws as well as any subsequent and/or applicable legislation that may amend or replace, react or consolidate any of them; and the terms "Personal Data" and "Personal Data Breach" have the same meaning as under the GDPR.

11. **Indemnity.** Supplier agrees that unless otherwise expressly prohibited by applicable law, it will defend, indemnify and hold harmless Berry, its subsidiaries, affiliates, related companies, customers, and end-users, their respective directors, officers, shareholders, employees, contractors and agents (collectively, the "Berry Parties") from and against any and all Claims. "Claims" shall refer to all actual and potential legal, equitable, statutory and administrative claims, causes of action, rights of indemnity, rights of contribution, liens, fines, penalties, remedies, investigations, recalls and other costs and expenses (including, without limitation, reasonable fees and expenses of Berry's choosing), and direct damages, indirect damages, losses, pure economic loss, loss of profits, loss of business, loss of goodwill and loss of reputation, arising out of or otherwise relating to the Goods or any other representation, warranty, requirement, or term in this Agreement. (i) for property damage, personal injury, or death in connection with the Goods; (ii) that the Goods infringe, or their importation, use, or resale, infringes the intellectual property rights of any other person; (iii) based upon the quality and/or condition of the Goods; (iv) based upon the quality and/or condition of the Goods; (v) by governmental agencies; and (vi) arising out of the negligent or intentional wrongdoing of Supplier or its servants, employees, independent contractors, agents or representative limit. Supplier agrees that, during the course of fulfilling the Agreement and for four (4) years thereafter, it will maintain comprehensive general and product liability insurance (or similar financial rating bureau) rating of A, or better. Supplier shall cause its insurance policies to be endorsed to include the Berry Parties as additional insureds (if normal and customary), defense or equitable (if normal and customary) or contractual contract (if normal and customary) by the insurer against the additional insureds. Such endorsement shall stipulate that such coverage will be primary (if normal and customary) and that Supplier and its insurers will have no rights to share in or otherwise obtain contributions from other insurance maintained by the Berry Parties. Within thirty (30) days of Berry's written request, Supplier will provide certified copies of the above-referenced insurance policies, including all endorsements, riders, and exclusions. Compliance with the foregoing insurance requirements shall not limit or obviate in any respect Supplier's obligation to defend and indemnify the Berry Parties.

12. **Prices:** In all cases: (i) Berry shall not be billed at prices higher than those stated in the P.O.; (ii) any changes in prices must be notified in writing by Berry; and (iii) if no price is shown, Berry's authorized agent must be notified of the price and must accept such price in writing prior to Supplier fulfilling the P.O. Unless otherwise specified in the P.O., and (iv) the price stated shall include all charges for packing, handling, storage and transportation to the agreed upon destination. All taxes applicable to Berry and paid by Supplier must be included in and shown separately on the invoice to Berry. Supplier agrees that any price reduction made with respect to the Goods subsequent to the date of the P.O. and prior to payment will be applicable to the P.O. Supplier represents and warrants that the prices for the Goods will always be the lowest prices paid by or available to other purchasers of Goods in similar or lesser quantities.

13. Payment Terms: Unless otherwise stated on the P.O. or shorter terms are required by Law, (i) payment terms shall be net 90 days after Berry's receipt of Supplier's invoice or the Goods, whichever occurs last; and (ii) Berry shall have the right to deduct, set-off or otherwise withhold payments reasonably determined by Berry to be due and owing to Supplier. In the event applicable Law requires or permits a party to identify an interest rate permitted by Law, which may include zero percent (0%).

14. Currency: Berry shall pay to Supplier all sums owed under Clause 12 in the currency set forth in the P.O. or, if none is listed, in U.S. dollars (\$); provided, if Supplier is located outside the United States, deals in a currency other than the U.S. dollar and no currency is identified within the P.O., Berry shall have the benefit of the more favorable rate of exchange between the U.S. dollar and the local currency based on the date of the P.O. or date of shipment of the Goods.

Supplier, (iv) appointment of a receiver or trustee, administrative receiver, trustee or administrator of Supplier, or (v) execution by Supplier of an assignment for benefit of creditors.

16. **Berry's Remedies Upon Supplier's Default:** Without limiting Berry's potential statutory rights and claims associated with this Agreement, upon default by Supplier, Berry will be entitled to recover its costs of cover, lost sales and profits, other incidental and consequential damages, and will be entitled to all other rights and remedies available under the Agreement, at Law, and in equity and may (but will not be obliged to) do any or all of the following: (i) reject or revoke acceptance of the Goods and return them to Supplier at Supplier's own risk and expense; (ii) require Supplier to repair or replace rejected Goods, or to provide a full refund of the price of the rejected Goods; (iii) obtain replacement Goods from an alternative supplier and recover from Supplier any additional costs incurred by Berry in obtaining replacement Goods; or (iv) immediately terminate the Agreement without obligation or liability whatsoever with respect to non-conforming Goods and Goods not yet delivered to Berry at the time of such termination. Berry's decision to pursue any remedy shall not be deemed to be an election not to pursue any other remedy at the same time. In all cases, Berry shall be entitled to recovery of its reasonable attorney's fees and expenses.

15. **Events of Default:** Unless expressly provided otherwise, the occurrence of any of the following events, or of any other comparable event according to the Law of Supplier's domicile: (i) insolvency of Supplier; (ii) suspension, cessation or threat of suspension or cessation of carrying on all or a substantial part of Supplier's business; (iii) bankruptcy, liquidation or compulsory order for the liquidation of Supplier; (iv) appointment of a receiver or trustee, administrative receiver, trustee or administrator of Supplier, or (v) execution by Supplier of an assignment for benefit of creditors.

17. **General.** The parties are independent contractors. The Agreement is not assignable by Supplier but may be assigned by Berry. If any provision of this Agreement is held invalid by any court in a final decision from which no appeal can be taken, such provision shall be deemed modified to eliminate the invalid element only. The invalidity of any provision of the Agreement shall not affect the force and validity of the remaining provisions. In the event any provision of this Agreement is held invalid by an applicable tribunal in a final or otherwise appealable decision, such provision shall be deemed modified to augment the invalid portion so that the provision, as modified, is as closely as legally possible, conforms to the parties' agreement concerning these Terms and Conditions and it is not possible to modify such provision to eliminate the invalid element, such provision shall be deemed modified to augment the invalid element, as modified, to the extent that it is not possible to modify such provision to eliminate the invalid element. The invalidity of any provision of this Agreement shall not affect the force and validity of the remaining provisions. If these Terms and Conditions are also communicated to Supplier in a language other than the English language, Supplier agrees that any inconsistencies between the interpretation of these Terms and Conditions and the English version thereof, available online at <<http://www.berryglobal.com/terms-and-conditions>>, shall be resolved by giving precedence to the English language version.

18. Governing Law and Venue Selection: This Agreement shall be governed in all respects by and interpreted in accordance with the Laws of the State of Indiana, United States of America, without application of any conflict of laws provisions or the Convention on Contracts for the International Sale of Goods, which shall have no force or effect in this Agreement. Having first attempted in good faith to informally resolve any dispute between them, either party to this Agreement may thereafter pursue such dispute solely and exclusively in the federal or state courts located in Indiana, and Supplier, on behalf of itself and a United States Affiliate, if applicable, consents to the personal jurisdiction of those courts and waives all defenses based on inconvenient forum. For purposes of this Clause 18, the term "United States Affiliate" shall include any entity organized under the laws of the United States which owns a majority interest of or is owned by Supplier at the time of contracting and shall apply to this Agreement only insofar as Supplier is not otherwise organized under the laws of the United States but is otherwise affiliated with a United States Affiliate, in which case, Supplier hereby designates its United States Affiliate as its service of process agent. Notwithstanding the foregoing, Berry has the right at its discretion to take legal action against Supplier at a court with jurisdiction over the registered office or branch office of Supplier or at the court with jurisdiction over the place of performance.